



# THE OFFICIAL GAZETTE

## OF THE COLONY AND PROTECTORATE OF KENYA

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GOVERNMENT NOTICE No 1267

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,  
*Clerk of the Legislative Council*

## ARRANGEMENT OF SECTIONS

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**A BILL ENTITLED  
AN ORDINANCE TO ESTABLISH A CORPORATION  
EMPOWERED TO FINANCE TRANSACTIONS  
ENTERED INTO BY THE GOVERNMENT OR BY  
GOVERNMENT AGENCIES IN CONNEXION WITH  
THE SALE AND PURCHASE OF CEREALS OR  
CROPS; TO MAKE PROVISION AS TO THE  
CONSTITUTION AND FUNCTIONS OF, AND AS  
TO THE GUARANTEE BY THE GOVERNMENT  
OF LOANS RAISED BY, SUCH CORPORATION,  
AND FOR PURPOSES CONNECTED WITH THE  
MATTERS AFORESAID**

ENACTED by the Governor of the Colony of Kenya,  
with the advice and consent of the Legislative Council thereof,  
as follows —

Short title  
and  
commencement

**1** This Ordinance may be cited as the Cereals Finance Corporation Ordinance, 1955 and shall come into operation on such day as the Governor may, by notice published in the Gazette, appoint

Interpretation

**2.** In this Ordinance unless the context otherwise requires—

Cap 282

“bank” means a bank within the meaning of the Banks Ordinance,

No 8 of  
1955

“cereals” means any crop for the time being specified in the First Schedule to the Agriculture Ordinance, 1955, 10

“Corporation” means the Cereals Finance Corporation established by section 3 of this Ordinance,

“financial year” means the twelve months ending on the 30th day of June or such other day as the Minister may from time to time direct, and whenever the Minister gives any direction under this provision he may give such direction as to treating a part of a year as a financial year and such incidental or supplemental directions as he may think fit, 15

“Government agency” means—

No 24 of  
1952

(a) in relation to cereals, the marketing of which is regulated by the Wheat Industry Ordinance, 1952 any agency within the meaning of that Ordinance, 20

G N 993  
of 1944

(b) in relation to cereals, the marketing of which is regulated by the Defence (Control of Maize) Regulations, 1944, during the continuance in force of those Regulations, the Maize Controller within the meaning of those Regulations, 25

(c) in relation to any other cereals, the marketing of which is for the time being controlled by Part II of the Agriculture Ordinance 1955 any agent constituted or appointed by or under that Ordinance,

No 8 of  
1955

5 "guaranteed minimum return" shall have the same meaning as in the Agriculture Ordinance 1955,

No 8 of  
1955

"public officer" means a person holding a full-time public office as a civil servant of the Government otherwise than as a part-time officer

10 3. (1) There shall be a Corporation, to be called the Cereals Finance Corporation, whose functions shall be to raise by borrowing, from overseas or local sources, and to lend at such rate of interest as the Corporation may in any particular case accept to charge, to the Government and to  
15 Government agencies any capital, means or resources required by the Government or such agencies for or towards all or any of the following purposes—

The Cereals  
Finance  
Corporation

(a) the purchase of any cereals,

20 (b) advance payments, instalments or other payments of moneys due on account of the purchase price of any cereals,

(c) advance payments, instalments or other payments of moneys due on account of guaranteed minimum returns relating to cereals,

25 (d) advances of moneys against, and pending the receipt of, moneys due to the Government or Government agencies on account of the sale by the Government or any such agency of cereals

(2) The Corporation shall be a body corporate having  
30 perpetual succession and a common seal, and may in its corporate name sue and be sued, and, for and in connexion with the purposes of this Ordinance, may purchase, hold, manage and dispose of movable and immovable property and enter into such contracts as may be, in the opinion of the  
35 Corporation, necessary or expedient

(3) The Corporation shall consist of such public officers as may from time to time be appointed by the Minister, and the Minister may from time to time nominate one of the members of the Corporation to be chairman thereof

40 (4) Every member of the Corporation shall hold and vacate his office in accordance with the terms of his appointment and shall, on ceasing to be a member, be eligible for reappointment

Provided that any member may at any time by notice in  
45 writing to the Minister resign his office

(5) If the Chairman of the Corporation ceases to be a member of the Corporation he shall also cease to be Chairman

50 (6) A member of the Corporation who ceases to be a member or ceases to be Chairman shall be eligible for reappointment

(7) No member of the Corporation shall be entitled to any remuneration in respect of his office as such

55 (8) The quorum of the Corporation and the arrangements relating to its meetings shall, subject to any directions given by the Minister, be such as the Corporation may determine

(9) The validity of the proceedings of the Corporation shall not be affected by any vacancy among its members or by any defect in the appointment of any member

(10) The common seal of the Corporation shall be of such device as may be approved by the Minister and the application of such seal to any contract or instrument shall be authenticated by the signature of the Chairman or some other member of the Corporation authorized by the Corporation to authenticate the application of the seal thereof, and of some other member or officer of the Corporation authorized by the Corporation to act in that behalf

(11) Any contract or instrument which, if made or executed by a person not being a body corporate would not be required to be under seal may be made or executed on behalf of the Corporation by any two members or by any one member and one officer, of the Corporation authorized either generally or specially by the Corporation to act for that purpose

(12) Any document purporting to be a document duly executed under the common seal of the Corporation shall be received in evidence and shall unless the contrary is proved, be deemed to be so executed

Powers of the Corporation

4. (1) The Corporation shall, subject to the provisions of this Ordinance have power to do all such things and to enter into all such transactions as appear to the Corporation to be necessary for or conducive or incidental to, the proper discharge of the functions described in sub-section (1) of section 3 of this Ordinance, without prejudice to the generality of the foregoing or to the provisions of sub-section (1) of section 3 of this Ordinance, the Corporation shall for the purpose of discharging its functions have power—

(a) to borrow or obtain moneys or credit by any means or in any form with or without security or to guarantee or become liable by way of suretyship or indemnity for the payment of money,

(b) to create, make, draw accept, endorse execute, issue discount, buy, sell, negotiate and deal in bills, notes bills of lading, warrants, coupons, stock, debentures and other negotiable or transferable instruments,

(c) subject to the provisions of this Ordinance to secure the payment of moneys borrowed by the Corporation or for which the Corporation may be or become liable by the issue of or upon debentures, perpetual terminable or otherwise, or bonds, or other obligations charged or not charged upon, or by mortgage charge hypothecation, lien or pledge of the whole or any part of the property, assets and rights of the Corporation, both present and future, and generally in such other manner and on such terms as may seem expedient, and to issue any of the Corporation's obligations or securities for such consideration and on such terms as may be thought fit, and also by a similar mortgage charge hypothecation, lien or pledge, to secure and guarantee the performance by the Corporation of any obligation or liability it may undertake and to redeem or pay off any such securities

(2) Nothing in this Ordinance—

(a) shall be construed as authorizing the Corporation to disregard any enactment or rule of law, or

(b) shall authorize the Corporation to incur an indebtedness (present or contingent) exceeding at any one time the sum of five million pounds, or such larger amount as the Legislative Council may from time to time by resolution approve

(3) No person lending money or affording credit to the Corporation shall be concerned to see or inquire whether a case has arisen to authorize the borrowing of such money or the obtaining of such credit by the Corporation, or whether the Corporation is otherwise properly exercising its powers under this Ordinance, nor shall any such person be answerable for any loss, misapplication or misappropriation of any moneys obtained by the Corporation under any such loan or credit as aforesaid

(4) Without prejudice to any provision of this Ordinance requiring the approval or direction of the Minister to be obtained or given for anything to be done by the Corporation, the Minister may give directions to the Corporation for restricting the exercise by it of any of its powers under this Ordinance, or for requiring the Corporation to exercise those powers in any manner specified in the directions

Provided that—

(1) any transaction between any person and the Corporation acting in purported exercise of its powers under this Ordinance shall not be void by reason only that it was carried out in contravention of such directions unless that person had actual knowledge of the directions, and

(11) nothing contained in this sub-section shall affect the provisions of sub-sections (2) and (3) of this section

(5) The Corporation may, with the approval of the Minister in each case and in such manner and subject to such directions as the Minister may generally or in any particular case give invest any moneys not immediately required by the Corporation for the discharge of its functions under the Ordinance

5. (1) Upon any, or any part of any, advance, loan or other financial assistance made or given by the Corporation to the Government or to any Government agency being expended by the Government or by such agency in or towards the purchase of any cereals, or the payment of the guaranteed minimum return in respect of any cereals, the Corporation shall be entitled to a fixed charge upon such cereals in the amount of such expenditure

Charge on cereals the subject of transactions financed by the Corporation

(2) A fixed charge created by virtue of the provisions of this section shall have effect notwithstanding anything in the Chattels Transfer Ordinance and shall not be deemed to be the subject of an instrument within the meaning of that Ordinance

Cap 281

(3) A fixed charge created by virtue of the provisions of this section shall continue in force until the expenditure giving rise thereto is repaid to the Corporation or otherwise liquidated or until the Corporation releases the specific cereals the subject thereof from the charge, whichever shall be the earlier

(4) (a) A fixed charge created by virtue of the provisions of this section shall, so long as the charge continues in force—

(i) confer on the Corporation a right, at any time, to take possession of the specific cereals the subject of the charge,

- (ii) confer on the Corporation, where possession of any cereals has been so taken, a right to sell such cereals either by auction or by private treaty and either for a lump sum payment or payment by instalments and otherwise upon such terms and conditions as the Corporation may think fit 5

Provided that if the sale or the price of any such cereals is controlled or regulated in any way by any law for the time being in force, then the Corporation shall sell such cereals in accordance with the provisions of such law, 10

- (iii) impose on the Corporation an obligation in the event of such power of sale being exercised, to apply the proceeds of sale in or towards the discharge of the charge, and the cost of seizure and sale, and to pay the surplus (if any) of the proceeds to the person properly entitled thereto 15

(b) A fixed charge created by virtue of the provisions of this section shall so long as the charge continues in force, impose on the Government, or as the case may be the Government agency— 20

- (i) an obligation whenever the Government or the Government agency sells any of the specific cereals, or receives any money in respect thereof, forthwith to pay to the Corporation the amount of the proceeds of the sale or the moneys so received, except to such extent as may be otherwise agreed, the sums so paid to be applied, except so far as otherwise agreed, by the Corporation in or towards the discharge of the charge, 25 30

- (ii) an obligation in the event of the Government or the Government agency receiving any money under any policy of insurance on any of the specific cereals comprised in the charge, or otherwise in respect of such cereals, forthwith to pay the amount of the sums so received to the Corporation except to such extent as may be otherwise agreed, the sums so paid to be applied, except so far as otherwise agreed in or towards the discharge of the charge 35

(c) Subject to compliance with the obligations so imposed the charge shall not prevent the Government or the Government agency selling any of the specific cereals the subject of the charge, and neither the purchaser nor any other person shall be concerned to see that such obligations are complied with notwithstanding that he may be aware of the existence of the charge 40 45

Advances  
to the  
Corporation

6. (1) For the purpose of enabling the Corporation to discharge its functions under this Ordinance the Minister may subject to the provisions of paragraph (b) of sub-section (2) of section 4 of this Ordinance make advances to the Corporation on such terms as to interest and repayment as he may determine 50

(2) Without prejudice to the provisions of section 4 of this Ordinance respecting its borrowing powers, the Corporation may, with the approval of the Minister, borrow temporarily by way of overdraft or otherwise such sums as the Corporation may consider necessary for carrying on its current operations 55



7. (1) The Corporation shall open and maintain an account or accounts in the name of the Corporation at a bank or banks to be approved by the Minister into which account shall be paid—

Banking  
accounts

5 (a) all moneys received by the Corporation on account of any advance grant or loan under the provisions of section 6 of this Ordinance,

10 (b) all other moneys received by the Corporation in, or in connexion with the discharge of its functions under this Ordinance

(2) No payment shall be made by or on behalf of the Corporation except through a bank account to be opened and maintained as aforesaid

15 (3) Nothing contained in this section shall affect the provisions respecting the establishment and maintenance of sinking funds reserve funds and stabilization funds contained in section 8 of this Ordinance

20 Provided that all payments to or from any such fund shall be made through a bank account to be opened and maintained as aforesaid

8 (1) The Corporation may and shall, whenever so directed by the Minister, establish and maintain such sinking funds, reserve funds or stabilization funds as may be necessary or desirable for the efficient discharge of the functions of the Corporation

Sinking funds  
etc

(2) The management of every such fund, the sums to be carried from time to time to the credit thereof, and the application thereof shall be as the Corporation may determine

30 Provided that the Minister may from time to time give to the Corporation such general or particular directions as he thinks fit as to any matter relating to the establishment, investment or management of any such fund, the carrying of sums to the credit thereof or the application thereof and the Corporation shall comply with such directions

35 9. (1) Any excess of the revenues of the Corporation for any financial year over the total sums properly chargeable by the Corporation to revenue account for that year, including in such sums (without prejudice to the generality of that expression) sums credited under section 8 of this Ordinance to any sinking fund, reserve fund or stabilization fund shall be applied by the Corporation in such manner as the Minister, after consultation with the Chairman of the Corporation, may direct

Application  
of revenues

45 (2) Any direction given under sub-section (1) of this section may require the whole or any part of any such excess as aforesaid to be paid into the consolidated fund

50 10 (1) The payment of all principal and other moneys borrowed by the Corporation under the authority of this Ordinance and of all other moneys for which the Corporation becomes indebted to any person in the discharge of its functions under this Ordinance, and any interest and other charges thereon, is to the extent to which such principal moneys and interest and other charges are not paid out of the funds of the Corporation hereby guaranteed out of, and charged upon, the consolidated fund

Guarantee of  
loans raised  
by the  
Corporation,  
etc

(2) Any sum required to be paid to any creditor of the Corporation for fulfilling the guarantee created by sub-section (1) of this section shall be paid by the Treasury out of the consolidated fund, which is hereby appropriated to that

purpose, and the Treasury shall remit to such creditor, or to the Crown Agents on his behalf any such sum, and any sum received by the Treasury by way of the repayment of any sum so paid shall be paid into the consolidated fund

(3) Whenever by the final judgment, decree, rule or order of any court of competent jurisdiction in the United Kingdom any sum of money is adjudged or declared to be payable to any creditor of the Corporation, then that sum, if not forthwith paid by the Corporation, shall be paid by the Treasury out of the funds of the Colony in the hands of the Crown Agents without other or further appropriation than this Ordinance

(4) If the sum remitted under sub-section (2) of this section is insufficient for the payment of any sum adjudged or declared to be payable in manner referred to in sub-section (3) of this section, the amount required to meet such deficiency shall be paid by the Treasury out of the consolidated fund which is hereby appropriated to that purpose, and the Treasury shall remit to the Crown Agents a sum equal to the amount of the said deficiency, and the sum so remitted shall be applied by the Crown Agents in the satisfaction of the amount due under any such final judgment, decree, rule or order as aforesaid

(5) In order to enable every payment due to be made by the Crown Agents under the provisions of this section to be duly made, a certificate under the hand of the Crown Agents specifying the sums so paid under a judgment, decree, rule or order of any court shall be sufficient authority to the Controller and Auditor-General, or other officer having the auditing of the accounts of the Crown Agents, for passing such sum without other or further appropriation

Accounts and  
reports

**11.** (1) The Corporation shall keep proper accounts, and proper records in relation to the accounts, and shall prepare in respect of each financial year a statement of accounts in such form as the Minister may direct

(2) As soon as may be after the end of every financial year the Corporation shall prepare a general report of its proceedings during that year, and transmit it to the Minister who shall consider it and lay copies thereof before the Legislative Council

(3) The said report shall have attached thereto the statement of accounts for the year and shall also include such information relating to the past and present activities of the Corporation, and the financial position of the Corporation, as the Minister may from time to time direct

(4) The Corporation shall at all reasonable times upon demand made by the Minister or by any person authorized by him in that behalf—

(a) afford to him or them full liberty to examine the accounts of the Corporation, and

(b) furnish him or them with all estimates, information and documents which he or they may require with respect to the financial transactions and engagements of the Corporation

Audit

**12.** The accounts of the Corporation shall be audited by the Controller and Auditor-General

Exemption  
from stamp  
duty and  
income tax

**13.** (1) No stamp duty shall be chargeable in respect of any instrument executed by, or on behalf of, or in favour of the Corporation in cases where, but for this exemption, the Corporation would be liable to pay the duty chargeable in respect of such instrument



(2) The Corporation shall not be liable for the payment of any income or other tax on or in respect of its income, revenues or receipts or any part thereof imposed under any law in force in the Colony

5     **14.** Nothing contained in this Ordinance shall authorize or empower the Corporation to undertake any banking business and nothing contained in the Banks Ordinance shall apply to the Corporation

Prohibition  
against  
Corporation  
undertaking  
banking  
business  
Cap 282  
Savings

10     **15.** (1) Nothing in this Ordinance shall in any way pre-  
judice or affect the rights of Her Majesty the Queen, Her Heirs  
and Successors or of any body or bodies politic or corporate  
or other person or persons excepting only such as are men-  
tioned in the Ordinance and those claiming by from or under  
them

15     (2) It is hereby declared that the Corporation is not to  
be treated for the purposes of any enactments or rules of law  
relating to the privileges of the Crown as a body exercising  
functions on behalf of the Crown

#### MEMORANDUM OF OBJECTS AND REASONS

The purpose of this Bill is to establish a Cereals Finance Corporation, whose functions shall be to raise, by borrowing from overseas or local sources, the money required by the Government and by Government agencies either for the purchase of cereals, or for advance payments due on account of the purchase price of any cereals, or for advances of money against and pending the receipt of sums due to the Government or Government agencies on account of the sale by the Government or any such agency of cereals or for advance payments due on account of guaranteed minimum returns relating to cereals

In present financial circumstances it is necessary that money should be borrowed for cereals finance, and the setting up of a Corporation will make it possible for money to be obtained from the London short-term market as well as from other sources

*Clause 2* defines the several terms used in the Bill *Clause 3* establishes the Cereals Finance Corporation and sets forth its functions, it also provides that the Corporation shall be a body corporate, and for the membership of the Corporation

The powers of the Corporation are set forth in *clause 4*, these are, broadly, to do all such things and to enter into all such transactions as are necessary for, or incidental to, the proper discharge of its functions, and are essentially powers to raise or obtain money or credit *Clause 4 (3)* provides that no person who lends money or affords credit to the Corporation shall be concerned to see whether the Corporation has properly exercised its powers and also that no such person shall be answerable for any loss or misapplication of any money obtained by the Corporation *Clause 4 (5)* empowers the Corporation to lend any money which it may not immediately require *Clause 5* provides that the Corporation shall be entitled to a fixed charge upon any cereals in respect of which any financial assistance towards the purchase thereof has been granted The rights of the Corporation in respect of such fixed charges are set out in this clause, which also specifies the obligations of the Government or Government agency arising out of the enforcement of any such charge

*Clause 6* enables the Minister to advance to the Corporation any money which may be available, to be used by the Corporation as its working capital

*Clause 7* empowers the Corporation to open and maintain accounts at any bank or banks and provides that no payment made by or on behalf of the Corporation shall be made except through a bank account

*Clause 8* enables the Corporation to establish and maintain sinking funds, reserve funds or stabilization funds, as the Corporation may think necessary or desirable

*Clause 9* provides that the Corporation shall deal with any excess of revenue over expenditure in any year in such manner as the Minister may direct, which may involve the payment of such excess into the consolidated fund

The payment of all principal and other moneys borrowed by the Corporation and of all moneys for which the Corporation becomes indebted in the discharge of its functions under the Bill together with any interest and other charges thereon is by *clause 10*, guaranteed out of and charged upon the consolidated fund of the Colony and the Treasury is required to pay out of the consolidated fund which is appropriated for this purpose any sum needed to implement this guarantee

*Clause 11* requires the Corporation to keep proper accounts and records and to prepare annually statements of its accounts and affairs *Clause 12* requires the accounts of the Corporation to be audited by the Controller and Auditor-General

*Clause 13* exempts the Corporation from stamp duty in respect of any instrument executed by or on behalf of or in favour of it in any case where they would otherwise be liable for stamp duty The Corporation is also, by this clause, exempted from the payment of income tax

*Clause 14* prohibits the Corporation from carrying on any banking business and provides that the Banks Ordinance shall not apply to the Corporation

*Clause 15* saves the rights of Her Majesty the Queen and declares that the Corporation is not to be treated for the purpose of any law as an emanation of the Crown

The additional expenditure of public moneys which will be incurred if this Bill becomes law will be negligible

Nairobi  
8th September 1955

R H MILLS-OWENS  
*Acting Attorney General*

GOVERNMENT NOTICE No 1268

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,  
*Clerk of the Legislative Council*

ARRANGEMENT OF SECTIONS

| SECTION                                                                                   | SECTION                                                                  |
|-------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|
| <b>PART I—PRELIMINARY</b>                                                                 | <b>PART IV—GENERAL</b>                                                   |
| 1—Short title and commencement                                                            | 11—Power to require returns                                              |
| 2—Interpretation                                                                          | 12—Effective date and publication of orders                              |
| 3—Appointment of Director and Deputy Director of Trade and Supplies                       | 13—False statements, etc                                                 |
| <b>PART II—EXPORT AND IMPORT CONTROL</b>                                                  | 14—Powers of entry and seizure                                           |
| 4—Power to prohibit or restrict exportation or importation of goods                       | 15—Power to enter and search premises under warrant                      |
| 5—Exportation or importation of goods without licence etc an offence                      | 16—Power to search vehicles                                              |
| 6—Director's power to issue licences, etc                                                 | 17—Procedure on seizure of goods                                         |
| 7—Particulars to be specified in licences                                                 | 18—Retention and disposal of seized goods                                |
| 8—Names contained in licences to be specified in all documents relating to exported goods | 19—Obstruction, etc                                                      |
| 9—Declaration as to ultimate destination of goods exported                                | 20—Penalties                                                             |
| <b>PART III—CONTROL OF ESSENTIAL SUPPLIES</b>                                             | 21—Offences committed by company, firm or other association              |
| 10—Regulations for controlling supplies of essential goods                                | 22—Legal proceedings and protection of officers                          |
|                                                                                           | 23—Minister to consult other Ministers in certain circumstances          |
|                                                                                           | 24—Regulations                                                           |
|                                                                                           | 25—Revocation of Regulations and Orders                                  |
|                                                                                           | <b>SCHEDULE—Defence Regulations and Orders revoked by this Ordinance</b> |

**A BILL ENTITLED**  
**AN ORDINANCE TO MAKE PROVISION FOR THE CONTROL OF THE IMPORTATION AND EXPORTATION OF GOODS OF ANY DESCRIPTION AND OF SUPPLIES ESSENTIAL TO THE LIFE OR WELL-BEING OF THE COMMUNITY, AND FOR MATTERS INCIDENTAL THERETO AND CONNECTED THEREWITH**

ENACTED by the Governor of the Colony of Kenya, with the advice and consent of the Legislative Council thereof, as follows —

**PART I—PRELIMINARY**

1. This Ordinance may be cited as the Trade and Supplies Ordinance, 1955, and shall come into operation on such day as the Governor may, by notice in the Gazette, appoint
2. In this Ordinance unless the context otherwise requires—
- “Deputy Director” means the person for the time being appointed as Deputy Director of Trade and Supplies under section 3 of this Ordinance,
- “Director” means the person for the time being appointed as Director of Trade and Supplies under section 3 of this Ordinance,
- “export licence” means an export licence issued under the provisions of section 6 of this Ordinance,
- “exportation” with its grammatical variations and cognate expressions means the carrying or taking out of or causing to be carried or taken out of the Colony by sea, air or land,

Short title and commencement

Interpretation

“goods” includes all kinds of articles wares, merchandise and livestock,

‘import licence’ means an import licence issued under the provisions of section 6 of this Ordinance,

‘importation’ with its grammatical variations and cognate expressions means the carrying or bringing into or causing to be carried or brought into the Colony by sea, air or land

Appointment of Director and Deputy Director of Trade and Supplies

3. (1) The Governor shall from time to time appoint a Director of Trade and Supplies and a Deputy Director of Trade and Supplies

(2) The Director may from time to time delegate to the Deputy Director or to any other person all or any of his functions under this Ordinance either generally or in respect of any area of the Colony or during such times or for such purposes or otherwise subject to such limitations as the Director thinks fit and may at any time revoke or vary any such delegation

Provided that no such delegation shall be deemed to divest the Director of all or any of his functions under this Ordinance and he may continue to exercise such functions notwithstanding such delegation

#### PART II—EXPORT AND IMPORT CONTROL

Power to prohibit or restrict exportation or importation of goods

4. (1) Whenever from time to time it appears to the Minister, after consultation with such persons as appear to the Minister to represent commercial and industrial interests in the Colony to be necessary in the public interest, or for the observance or performance by the Government of any of its obligations in respect of external affairs, so to do he may by order either prohibit absolutely or restrict, by means of such conditions and limitations as may be specified in the order the exportation or importation of all or any specified goods or class or description of goods, either generally, or to or from any specified country or place or to or from any specified person or class of persons

Provided that the Minister may dispense with such consultation as aforesaid in any case which appears to him to be too urgent to permit of such consultation

(2) The publication of an order made under this section shall be deemed for all purposes to be conclusive proof of the occurrence of the necessity for the prohibition or restriction imposed by the order

(3) Any order made under this section may be varied or revoked by a subsequent order

Exportation or importation of goods without licence, etc an offence

5. Where the exportation or importation of any goods or class or description of goods is restricted, either generally or to or from any country or place or to any person or class of persons, by an order made under section 4 of this Ordinance, any person who exports or imports, or attempts to export or to import, any such goods in contravention of the provisions of the order otherwise than under the authority of an export licence or of an import licence (as the case may be) or otherwise than in accordance with the extent or the conditions of such licence if any authorizing such export or such import shall be guilty of an offence against this Ordinance

6. (1) The Director may, in his absolute discretion, either grant or refuse to grant an export licence or an import licence, authorizing the exportation or importation of any goods, the exportation or importation of which is for the time being restricted by an order made under section 4 of this Ordinance, or may grant such a licence to such extent or upon such conditions as he may think fit and he may likewise from time to time renew, or at any time vary or cancel any licence already granted

Director's  
power to  
issue licences  
etc

10 (2) The Director may, in his absolute discretion, impose additional or different conditions upon the variation or renewal of any export licence or import licence

(3) No export licence or import licence issued to any person shall be transferred to any other person except with the previous written permission of the Director, and any person who attempts, or purports, to transfer any such licence to any other person without such permission shall be guilty of an offence and shall be liable to a fine not exceeding two thousand shillings

20 (4) Any person who is aggrieved by the cancellation of a licence granted to him may appeal in writing within seven days of cancellation to the Minister, whose decision shall be final

7. Every export licence and import licence shall specify—

Particulars to  
be specified  
in licences

(a) the name of the person to or from whom or the place to or from which, or, as the case may require, both the name of the person to or from whom and the place to or from which, exportation or importation of the goods the subject of the licence is authorized by the licence,

(b) such of the conditions and limitations specified in the order imposing the restriction on the exportation or importation of the goods the subject of the licence as may be applicable in the case of such goods or such person or place as aforesaid,

(c) the conditions to which the same is subject in accordance with the provisions of section 6 of this Ordinance and

40 (d) such other matters as may be prescribed

8. (1) Every person who exports goods under an export licence shall insert the particulars required by the provisions of paragraph (a) of section 7 of this Ordinance to be specified in the licence in all bills of lading, manifests or other documents relating to the consignment for exportation of the goods or any part thereof, to be exported under the authority of such licence, any exporter who fails to comply with the provisions of this sub-section shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two thousand shillings

Names  
contained in  
licences to be  
specified in all  
documents  
relating to  
exported goods

(2) Where the requirements of this section are not complied with in the case of any such bill of lading, manifest or document as aforesaid the person by whom or on whose behalf the same purports to have been made out or signed shall, whether he is the exporter of the goods or not, be guilty of an offence and shall be liable on conviction to a fine not exceeding two thousand shillings



Declaration  
as to ultimate  
destination  
of goods  
exported  
H C Act No 12  
of 1952

9. (1) Whenever any consignment of goods the exportation of which is authorized by an export licence is entered for exportation in accordance with the provisions of the East African Customs Management Act, 1952 the Director may require the exporter or any person acting on his behalf to make a declaration in writing specifying the person for whom and the country for which the goods are ultimately destined 5

(2) Where any such consignment as aforesaid is intended to be exported otherwise than overseas references in sub-section (1) of this section to the consignment being entered for exportation shall be construed as references to the consignment being delivered to the contractor or other person actually effecting such exportation 10

(3) The Director may, by notice in writing served upon the person appearing to the Director to be the exporter of the goods, prohibit the exportation of any such consignment as aforesaid pending the making and delivery to him of such a declaration as aforesaid in any case in which such a declaration is required to be made under the provisions of sub-section (1) or (2) of this section 15 20

(4) After the exportation of any consignment of goods the exportation of which is authorized by an export licence the Director may whether or not a declaration shall have been made or delivered under the preceding provisions of this section, require the exporter to produce to him, within such period, not being less than fourteen days after the date upon which the consignment is intended to reach its ultimate destination, as the Director may specify satisfactory evidence that the consignment has reached its ultimate destination as specified in the declaration or as the case may be the export licence 25 30

(5) Any person who—

(a) refuses or neglects to make or deliver to the Director any declaration required of him under the provisions of this section, or 35

(b) knowingly or recklessly makes or delivers to the Director any such declaration which is false or misleading in a material particular, or

(c) exports or attempts to export any goods in contravention of a prohibition imposed by the Director under sub-section (3) of this section, or 40

(d) refuses or neglects except for reasons beyond his control the onus of proof whereof shall lie on him to produce to the Director satisfactory evidence in accordance with the provisions of sub-section (4) of this section, 45

shall be guilty of an offence against this Ordinance

### PART III—CONTROL OF ESSENTIAL SUPPLIES

Regulations  
for controlling  
supplies of  
essential goods

10. (1) The Minister so far as it appears to him after consultation with such persons as appear to the Minister to represent commercial and industrial interests in the Colony to be necessary in the interests of maintaining, controlling or regulating supplies of any goods which he considers to be essential to the life or well-being of the community or the equitable distribution of such goods may by order— 50 55

(a) either prohibit absolutely or control or regulate the manufacture treatment, keeping, storage, movement transport, distribution sale, purchase, disposal use or consumption of such goods,

(b) require any person in possession of any such goods to sell such goods to a specified person, and at a specified price not being less than the price at which similar goods are normally sold,

5 (c) provide for any incidental and supplementary matters for which the Minister thinks it expedient for the purposes of the order to provide

Provided that the Minister may dispense with such consultation as aforesaid in any case which appears to him to be  
10 too urgent to permit of such consultation

(2) Any order made under this section may prohibit the doing of anything thereby forbidden except under the authority of a licence or permit granted, on payment of fees or otherwise, or may require the doing of anything thereby ordered,  
15 by such authority or person as may be specified in such order and may be made so as to apply either generally or to any particular goods or class or description of goods and so as to have effect either throughout the Colony or in any particular area thereof, and different orders may be made for different  
20 goods, purposes or circumstances

(3) Any order made under this section may also provide that any registration effected, order made, licence or permit issued or other act or thing done under any of the Regulations or Orders revoked by this Ordinance shall be deemed, with or  
25 without conditions or qualifications to be effective for the purposes of the order made under this section

(4) The publication of an order made under this section shall be deemed for all purposes to be conclusive proof of the occurrence of the necessity for the prohibition or restriction  
30 imposed by the order

(5) Any order made under this section may be varied or revoked by a subsequent order

#### PART IV—GENERAL

11. (1) Whenever it appears to the Minister after con-  
35 sultation with such persons as appear to the Minister to represent commercial and industrial interests in the Colony, necessary so to do for the better carrying out of the provisions of this Ordinance, he may—

Power to  
require  
returns

(a) by notice published in the Gazette, require any person  
40 or class of persons carrying on any trade or business, or any specified trade or business, to complete and return, periodically or otherwise, to such person as may be specified in the notice, and within such time and with respect to such date or dates or such period  
45 or periods as may be so specified, such forms and returns relating to the trade or business, including the goods stocked required, or produced therein or thereby as shall be specified in the notice,

(b) serve upon any person whom the Minister has reason  
50 to believe may be carrying on any trade or business notices requiring him to complete and return to such person as may be specified in the notices, and within such time and with respect to such date or dates or such period or periods as may be so speci-  
55 fied, the like forms and returns as aforesaid

Provided that nothing in this section contained shall empower the Minister to require the furnishing by any person of any information relating to any agricultural business carried on by such person



(2) No person shall be required under the foregoing provisions of this section to furnish any balance-sheet or profit and loss account, but this sub-section shall not prevent the requiring of information by reason only that it is or might be contained as an item in such a balance-sheet or account 5

(3) Any notice authorized to be served under paragraph (b) of sub-section (1) of this section on any person believed to be carrying on a trade or business shall be deemed to be duly served if it is addressed to him by the description of "the occupier" of the premises upon which the trade or 10 business in question is believed to be carried on and delivered to some person, not appearing to be merely a subordinate employee on the premises

(4) No information relating to any particular trade or business obtained under this section shall be published or 15 otherwise disclosed without the previous consent in writing of the person by whom the information was furnished

Provided that nothing in this section shall restrict the disclosure of information—

(i) to any Minister responsible for, or any officer of, 20 any department of the Government,

(ii) to any person or any authority having any functions in relation to the development or regulation of trade or business in the Colony, or

(iii) to any person for the purpose of legal proceedings 25 or the use of such information in any manner which the Minister thinks necessary or expedient in connexion with the objects of this Ordinance

(5) (a) Any person who fails to furnish information in compliance with a requirement under this section shall be 30 guilty of an offence against this Ordinance

(b) If any person—

(i) in purported compliance with a requirement imposed under this section knowingly or recklessly furnishes any information which is false 35 or misleading in any material particular, or

(ii) publishes or otherwise discloses any information in contravention of the provisions of sub-section (4) of this section,

he shall be guilty of an offence against this Ordinance 40

Effective date  
and publication  
of orders

**12.** Every order made under this Ordinance shall come into operation on the day on which the same is made unless another date is therein specified, and every such order shall be published in the Gazette as soon as circumstances permit after the making thereof 45

False  
statements etc

**13.** Any person who for any of the purposes of this Ordinance—

(a) knowingly or recklessly makes or presents any statement or declaration, orally or in writing, which is false or misleading in any material particular, or 50

(b) produces to the Minister, the Director, the Deputy Director or any officer concerned with any of the purposes of this Ordinance, any document which is false or misleading in any material particular or was not made or given by the person by whom it pur- 55 ports to have been made or given, or which has been in any way altered or tampered with



shall without prejudice to any penalty or liability imposed by any other law in force in the Colony or the taking of proceedings for or in respect of any such penalty or liability, be guilty of an offence against this Ordinance

5     Provided that a person producing such a document as aforesaid shall not be guilty of an offence if he proves that he was unaware, and could not by the taking of reasonable steps have become aware, that the document was false or misleading as aforesaid

10     **14.** The Director, or Deputy Director, or any person authorized in writing by either of them, or any police officer of or above the rank of Assistant Inspector, may, if he has reasonable cause to believe that any offence is being committed on any premises against any of the provisions of this  
15 Ordinance, or that any goods, in respect of which he has reasonable cause to believe that such an offence has been committed, are in or upon any premises, enter and search such premises without a search warrant for the purpose of ascertaining if such an offence is being committed or whether  
20 or not such goods are in or upon such premises, and may inspect such goods and any documents relating to them and may seize any such goods or documents on such premises which the person so searching or inspecting has reasonable cause to believe to be evidence of the commission of such  
25 an offence

Powers of entry and seizure

**15.** If a magistrate is satisfied by information on oath that there is reasonable ground for suspecting that an offence has been committed against any of the provisions of this Ordinance and that evidence of the commission of the offence  
30 is to be found on any premises specified in the information he may grant a search warrant authorizing any police officer to enter the premises at any time within one month from the date of the warrant and to search the premises and to seize any goods found on the premises which the person so  
35 authorized has reasonable ground for believing to be evidence of the commission of such offence as aforesaid

Power to enter and search premises under warrant

**16** (1) If the Director or Deputy Director or any person authorized in writing by either of them or any police officer has reason to believe that any vehicle contains any goods  
40 which are being transported in contravention of any of the provisions of this Ordinance, or of any order made thereunder or of any licence issued or requirement or condition imposed under any such order or licence, he may order such vehicle to stop and may examine the contents thereof, and  
45 if any such person fails to stop he shall be guilty of an offence against this Ordinance

Power to search vehicles

      (2) Where any vehicle has been stopped under the provisions of sub-section (1) of this section the person stopping such vehicle may take it with its contents to the nearest  
50 police station, and the officer in charge of such police station may thereupon seize any goods found therein

**17.** (1) Where any goods have been seized under the provisions of section 14, 15 or 16 of this Ordinance the person who has seized such goods shall forthwith report to a  
55 magistrate the fact of such seizure, and if a magistrate is satisfied that such goods are of a perishable nature he may authorize the Director to sell or otherwise dispose of such goods

Procedure on seizure of goods

Retention and  
disposal of  
seized goods

**18.** (1) Where any goods have been seized under the provisions of section 14, 15 or 16 of this Ordinance, the same may be retained for a period not exceeding one month or if within that period proceedings are commenced for any offence against this Ordinance in respect of such goods until the final determination of those proceedings 5

(2) Where proceedings are taken for any offence against this Ordinance the court by or before which the alleged offender is tried may make such order as to the forfeiture of the goods in respect of which such offence was committed or as to the disposal of such goods as the court shall see fit 10

(3) In this section references to "goods" shall be construed as including the proceeds of the sale of any goods where such goods have been sold in accordance with the provisions of section 17 of this Ordinance 15

Obstruction  
etc

**19** Any person who obstructs or hinders the Director or the Deputy Director, or any person authorized in writing by either of them, or a police officer lawfully exercising any of the powers conferred by section 14, 15 or 16 of this Ordinance, shall be guilty of an offence against this Ordinance 20

Penalties

**20.** Any person who is guilty of an offence against this Ordinance shall be liable to a fine not exceeding ten thousand shillings or to imprisonment for a term not exceeding two years, or to both such fine and imprisonment

Offences  
committed  
by company  
firm or other  
association

**21.** Where any offence against this Ordinance is committed by a corporation or company, or by a firm, syndicate or other association of individuals, every person who at the time when the offence was committed was a director or an officer of the corporation or company, or, as the case may be, a partner or an officer of the firm, syndicate or association, or concerned in the management of the affairs of such corporation company, firm, syndicate or association, shall severally be liable to be prosecuted and punished for the offence in like manner as if he had himself committed the offence, unless he proves that the act or omission constituting the offence took place without his knowledge, consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions as a director, partner, officer, or person concerned as aforesaid and to all the circumstances 25 30 35 40

Legal  
proceedings  
and protection  
of officers

**22.** (1) In any proceedings under this Ordinance—

- (a) it shall not be necessary to prove guilty knowledge,
- (b) the onus of proving the place of origin of any goods or that the exportation or importation of any goods is lawful shall be on the person prosecuted or claiming anything seized under the provisions of this Ordinance 45

(2) Any person charged with any offence against this Ordinance may be proceeded against, tried and punished in any place in which he may be in custody or charged for that offence as if the offence had been committed in such place, and the offence shall for all purposes incidental to or consequential upon, the prosecution, trial or punishment thereof be deemed to have been committed in that place 50 55

Provided that nothing herein contained shall preclude the prosecution, trial and punishment of such person in any place in which but for the provisions of this section, such person might have been prosecuted, tried and punished

(3) Any officer of the Government may appear and prosecute on behalf of the Crown in any prosecution for an offence against this Ordinance

(4) Where any proceedings are brought against any officer of the Government on account of any act done, whether by way of seizure of any goods or otherwise, in the execution or intended execution of his powers or duties under this Ordinance and judgment is given against such officer, then if the court before which such proceedings are heard is satisfied that there were reasonable grounds for such act, the plaintiff shall be entitled to recover anything seized or the value thereof but shall not otherwise be entitled to any damages and no costs shall be awarded to either party

23. The Minister shall not exercise any power conferred upon him by this Ordinance in respect of any goods which are or may be controlled or regulated by any other Ordinance unless he shall have previously consulted the Minister for the time being responsible for the matter in question

Minister to  
consult other  
Ministers in  
certain  
circumstances

24. The Minister may make regulations generally for the purpose of carrying this Ordinance into effect, and, in particular but without prejudice to the generality of the foregoing may make rules with respect to any of the following matters—

Regulations

- (a) the forms to be used and the particulars to be furnished for any of the purposes of this Ordinance,
- 25 (b) the procedure on applications for and the issue of, and the determination of questions in connexion with the grant variation renewal and cancellation of licences,
- (c) the issue of duplicate licences in the case of licences lost or destroyed,
- 30 (d) the means by which goods intended for exportation are to be identified in relation to export licences,
- (e) the custody of licences, the production, return and cancellation of licences on expiration or cancellation,
- 35 (f) the fees to be payable upon the grant, variation, renewal and cancellation of licences, and
- (g) anything which is to be or may be prescribed under this Ordinance,

40 and different regulations may be made for different classes or descriptions of goods or for different purposes or circumstances

25. The Regulations and Orders specified in the Schedule to this Ordinance are revoked

Revocation of  
Regulations  
and Orders

45 Provided that—

- (i) every licence authorizing the exportation importation or distribution of any goods issued under the authority of any such Regulation or Order being a licence valid at the commencement of this Ordinance, shall be deemed to have been issued under this Ordinance and to remain valid until it expires or is terminated by the Director except that any such licence issued more than twelve months prior to the commencement of this Ordinance shall be deemed to expire on the expiration of twenty-eight days from the commencement of this Ordinance unless the Director extends its period of validity,
- 50
- 55

Cap I

- (ii) sub-section (3) of section 13 of the Interpretation and General Clauses Ordinance (which relates to the effect of repeals) shall apply in respect of the revocation of the Regulations and Orders hereby revoked as if such Regulations and Orders were respectively Ordinances repealed by this Ordinance 5

(Section 25)

## SCHEDULE

DEFENCE REGULATIONS AND ORDERS REVOKED BY THIS  
ORDINANCEG N 793  
of 1941

- 1 The Control of Imports Order 1941

G N 274  
of 1944

- 2 The Defence (Control of Sugar) Regulations, 1944

G N 886  
of 1944

- 3 The Defence (Control of Distribution and Rationing of Food-stuffs) Regulations, 1944

G N 624  
of 1945

- 4 The Defence (Sale of Goods) Order, 1945

G N 616  
of 1949

- 5 The Defence (Control of Industries) Order, 1949

G N 790  
of 1949

- 6 The Defence (Export Control) Order, 1949

## MEMORANDUM OF OBJECTS AND REASONS

The purpose of this Bill is to replace by permanent legislation, so far as necessary the system of control of the importation and exportation of goods and the distribution of essential supplies hitherto controlled under the Defence Regulations, 1939 (Government Notice No 635 of 1939), and other Regulations and Orders made thereunder

The Defence Regulations were continued after the conclusion of hostilities by virtue of the Supplies and Services (Transitional Powers) Act, 1945, of the United Kingdom the Supplies and Services (Transitional Powers) (Colonies etc) Order in Council, 1946, and the Supplies and Services (Transitional Powers) Order, 1946 (Government Notice No 183 of 1946) The Supplies and Services (Transitional Powers) Act, 1945, is, however, limited to expire on the 10th December, 1955 (having been continued in force annually since 1950) Accordingly, the control of imports and exports and of the distribution of essential supplies, which at present depends entirely upon the continuance in force of that Act must be effected by legislation enacted in the Colony, if such control or some measure thereof is to continue

It is considered to be essential to the protection of the economic life of the Colony, and to the maintenance of the position of the Colony as a member of the Sterling Area bloc, that some degree of control should continue and the provisions of this Bill are designed to provide the machinery for such control

The Bill has three main objects namely, the regulation of imports and exports in so far as such regulation is deemed to be necessary in the public interest or to enable the Colony to meet its obligations as a member of the Sterling group the regulation of supplies essential to the life and well-being of a community, and the conferment of powers to secure information and statistics necessary for the foregoing purposes, and to enforce the provisions of the Bill Part I of the Bill defines the terms used therein (*clause 2*) and provides for the appointment of the Director of Trade and Supplies and his Deputy and for the delegation by him of his powers (*clause 3*)

Part II deals with the control of exports and imports *Clause 4* enables the Minister to prohibit or restrict exports and imports, but requires him normally to consult persons who represent commercial and industrial interests in the Colony before doing so *Clause 5* makes it an offence to export or import goods in contravention of any order prohibiting or restricting export or import or of the terms or conditions of any licence authorizing export or import, and *clause 6* deals with the powers of the Director to issue and cancel such licences and provides for an appeal against any cancellation *Clause 7* specifies the particulars to be inserted on licences, and *clause 8* requires certain of those particulars to be included in all bills of lading or other documents relating to the export of any goods licensed for export *clause 9* provides that a declaration must be made of the ultimate destination of any goods exported under licence

Part III deals with the control of essential supplies within the Colony *Clause 10* empowers the Minister to prohibit, control or regulate the manufacture, storage, movement, distribution, disposal and use of goods subject normally to the same consultation as is provided in *clause 4* *Clause 11* enables the Minister to acquire statistical information in order to assist him to carry into effect the purposes of the Bill and imposes certain restrictions and safeguards upon the nature, use and disclosure of such information

Part IV contains provisions relating to the enforcement of the law and other general matters in connexion with it *Clause 12* provides that all orders made under the Bill shall come into force on their being signed, but requires that they be published in the Gazette as soon thereafter as circumstances permit The proper implementation of this Bill may make it necessary to make orders having immediate effect and it will not always be possible to have such orders published on the day on which they are made the effect of such orders will, of course be communicated as soon as they are made to those concerned or affected by them *Clause 13* makes it an offence for any person to make any false statement for the purposes of the Bill *Clauses 14 to 18* provide powers of entry, search, inspection and seizure, in connexion with suspected offences against the Bill, and for the disposal of goods so seized *Clause 19* makes it an offence for any person to obstruct or hinder any person lawfully exercising his powers under these clauses *Clause 20* stipulates the penalties for offences against the provisions of the Bill, and *clause 21* makes provision for cases in which such offences are committed by companies, firms or other associations of persons *Clause 22* deals with legal proceedings, making special provision with regard to evidence and for the protection of Government officers in the execution of their powers under the Bill *Clause 23* requires the Minister to consult other Ministers before he makes any order under the Bill in respect of any goods which are or may be regulated by any other Ordinance *Clause 24* enables the Minister to make regulations, in order to operate the Bill more effectively *Clause 25* revokes the existing Defence Regulations and Orders made thereunder, which are set out in the Schedule while saving existing licences

No additional expenditure of public moneys will be incurred if this Bill is enacted

Nairobi,  
8th September, 1955

R H MILLS-OWENS,  
*Acting Attorney General*

#### COMPARATIVE TABLE

N R = Trade and Supplies Ordinance of Northern Rhodesia (Cap 211 of 1953 Revised Edition)

T Ex = Exports Control Ordinance, 1950, of Tanganyika (No 34 of 1950)

T Im = Imports Control Ordinance, 1950, of Tanganyika (No 73 of 1950)

Def = Defence (Control of Distribution and Rationing of Foodstuffs) Regulations, 1944 (Government Notice No 886 of 1944)

| Clause | Source                                       |
|--------|----------------------------------------------|
| 1      | —                                            |
| 2      | —                                            |
| 3      | T Ex and T Im, ss 3                          |
| 4      | N R, s 3                                     |
| 5      | N R, s 4 T Ex, ss 4, 13, T Im, ss 4, 12      |
| 6      | T Ex, ss 7, 9, 11, 15, T Im, ss 7, 8, 10, 14 |
| 7      | N R, s 7                                     |
| 8      | N R, s 8                                     |
| 9      | N R, s 9                                     |
| 10     | N R, s 12                                    |
| 11     | N R, ss 11, 13                               |
| 12     | New                                          |
| 13     | N R, s 14, T Ex, s 14, T Im, s 13            |



| Clause | Source                                                                                                |
|--------|-------------------------------------------------------------------------------------------------------|
| 14     | Def , Reg 24, T Ex , s 21, T Im , s 19 (1)                                                            |
| 15     | Def Reg 25                                                                                            |
| 16     | Def , Reg 26                                                                                          |
| 17     | Def , Reg 27                                                                                          |
| 18     | T Ex , s 19 (2), T Im , s 20 (2)                                                                      |
| 19     | T Ex , s 21 (2), T Im s 19 (2)                                                                        |
| 20     | T Ex , s 19, T Im , s 20                                                                              |
| 21     | N R , 16, T Ex , s 20, T Im , s 21                                                                    |
| 22     | New cf Reg 22 of the Defence (Control of Prices) Regulations, 1945 (Government Notice No 109 of 1945) |
| 23     | —                                                                                                     |
| 24     | —                                                                                                     |

GOVERNMENT NOTICE No 1269

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,  
*Clerk of the Legislative Council*

**A BILL ENTITLED  
AN ORDINANCE TO AMEND THE MEDICAL  
PRACTITIONERS AND DENTISTS ORDINANCE**

ENACTED by the Governor of the Colony of Kenya with the advice and consent of the Legislative Council thereof, as follows —

Short title

1. This Ordinance may be cited as the Medical Practitioners and Dentists (Amendment) (No. 2) Ordinance, 1955

Amendment of  
section 21 (6)  
of Cap 125

2. Sub-section (6) of section 21 of the Medical Practitioners and Dentists Ordinance is amended by substituting the word ‘annul’ for the word “amend” which appears therein 5

**MEMORANDUM OF OBJECTS AND REASONS**

The Medical Practitioners and Dentists (Amendment) Ordinance, 1955 (No 30 of 1955), amended the principal Ordinance, amongst other respects, by substituting a new section 21 in relation to disciplinary proceedings. An amendment to sub-section (6) of this new section was moved when the 1955 Ordinance was in the Committee stage of Legislative Council, but owing to an error in transcribing this amendment, the word “amend” was inserted instead of the word “annul”, the latter word being in the amendment referred to, this Bill corrects the error

The enactment of this Bill will not involve any additional expenditure of public moneys

Nairobi,  
8th September, 1955

R H MILLS-OWENS,  
*Acting Attorney General*

GOVERNMENT NOTICE No 1270

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A. W. PURVIS,  
*Clerk of the Legislative Council*

ARRANGEMENT OF SECTIONS

| SECTION                                              | SECTION                                                    |
|------------------------------------------------------|------------------------------------------------------------|
| 1—Short title                                        | 4—Finality of decisions                                    |
| 2—Persons eligible to make claims                    | 5—Ratification of past awards                              |
| 3—Power to award pensions, gratuities and allowances | 6—Application of sections of H M Forces Pensions Ordinance |

**A BILL ENTITLED**  
**AN ORDINANCE TO MAKE TEMPORARY PROVISION**  
**FOR THE AWARD OF PENSIONS, GRATUITIES**  
**AND ALLOWANCES IN RESPECT OF DEATH OR**  
**DISABLEMENT SUSTAINED BY CERTAIN**  
**PERSONS DURING THE PRESENT EMERGENCY**

ENACTED by the Governor of the Colony of Kenya,  
with the advice and consent of the Legislative Council thereof,  
as follows —

1 This Ordinance may be cited as the Emergency Short title  
Pensions Ordinance, 1955

2. (1) Any person who suffers or has suffered a disable- Persons  
ment either as a result of unlawful acts of violence directly eligible to  
5 related to the public emergency referred to in Proclamation make claims  
No 38 of 1952 and committed during the appointed period or  
as a result of operations undertaken during the said period  
for the prevention of crime and the maintenance of public  
order, and the dependant or dependants of any person who  
10 dies or has died as a result of such acts or operations as afore-  
said, may make a claim under this Ordinance to the Governor  
in Council of Ministers (hereinafter in this Ordinance referred  
to as the Council)

(2) For the purposes of this section—  
15 “appointed period” means the period beginning with the  
20th day of October, 1952 and ending with such date as the  
Governor may by notice in the Gazette appoint for the  
purposes of this Ordinance,

“disablement” means physical or mental injury or  
20 damage, or loss of physical or mental capacity

3. Where any claim has been made under section 2 of Power to  
this Ordinance the Council may, in its absolute discretion, if award  
it is satisfied that provision with regard thereto is not made pensions,  
in any other law for the time being in force, or that any such gratuities and  
25 provision is in the circumstances inadequate, award to the allowances  
claimant such pension, gratuity or allowance (or any or all  
of them) as it may deem just, and every such pension, gratuity  
or allowance shall be charged on the consolidated fund

4. The decision of the Council on any claim made under Finality of  
30 this Ordinance shall be final decisions

Provided that the Council may if it thinks fit at any  
time vary or quash a decision so made, but not retrospectively  
so as to enable any money already paid in respect of a pension,  
gratuity or allowance to be recovered, unless such money was  
35 paid as a result of fraud or mistake induced by the person  
claiming or receiving the money or any other person acting  
on his behalf



Ratification of  
past awards

5. (1) All awards of pensions, gratuities and allowances which have at any time prior to the commencement of this Ordinance been made by the Security Forces Compensation Committee are hereby ratified and confirmed and shall be in all respects as valid as if they had been made by the Council 5 under this Ordinance, and the provisions of this Ordinance shall apply accordingly

(2) In this section the expression "Security Forces Compensation Committee" means the committee known by that name, which was first established on 12th February, 1954, 10 as a committee of the Executive Council, and was reconstituted on 26th July 1954, as a committee of the Council of Ministers

Application of  
sections of  
H M Forces  
Pensions  
Ordinance  
Cap 86

6 The provisions of sections 3 and 4 of His Majesty's Forces Pensions Ordinance shall apply in respect of pensions, 15 gratuities and allowances granted under the provisions of this Ordinance

#### MEMORANDUM OF OBJECTS AND REASONS

This Bill seeks to validate certain *ex gratia* awards of pensions, gratuities and allowances made from time to time during the present Emergency as measures of compensation for death or disability sustained as a result of terrorist and anti-terrorist action. It also seeks to empower the Governor in Council of Ministers to deal with any claims for such compensation still outstanding or which may yet arise.

Clause 2 of the Bill restricts claims to unlawful acts committed during the present Emergency, so that the Bill has only a limited effect.

Clause 3 provides that the Governor in Council of Ministers shall exercise a discretion to make awards and empowers him to do so in certain cases where, although other legal provision exists for compensation, the provision is considered inadequate. This has been shown to be necessary in the present Emergency, particularly in relation to His Majesty's Forces Pensions Ordinance, under which the pensions, gratuities and allowances available to the Forces it covers have not in many cases provided sufficient compensation for acts of terrorism.

Clause 4 is of minor effect.

Clause 5 deals with the ratification of past awards.

By clause 6 certain provisions of His Majesty's Forces Pensions Ordinance are applied. These protect the awards against assignment, transfer, attachment and sequestration and also provide for cessation of pensions on imprisonment.

Some additional expenditure of public moneys will be incurred if the provisions of this Bill become law. The amount of such expenditure depends on the number of pensions, gratuities and allowances awarded and cannot at present be estimated.

Nairobi  
8th September 1955

R. H. MILLS-OWENS  
*Acting Attorney General*